

**ADDITIONAL MEMORANDUM OF UNDERSTANDING
BETWEEN
THE DEPARTMENT OF HOMELAND SECURITY AND THE
DEPARTMENT OF STATE OF THE UNITED STATES OF AMERICA,
ON THE ONE SIDE,
AND
THE NATIONAL COMMISSION FOR THE STATELESS AND
REFUGEES OF THE REPUBLIC OF PARAGUAY, ON THE OTHER
SIDE,
CONCERNING THE TRANSFER OF THIRD-COUNTRY NATIONALS**

The Department of Homeland Security and the Department of State of the United States of America (together, the “U.S. Signatory”), on the one side, and the National Commission for the Stateless and Refugees (“CONARE”) of the Republic of Paraguay, on the other side, (hereinafter referred to collectively as the “Signatories”),

REAFFIRMING their willingness to cooperate concerning the potential transfer of certain third-country nationals present in the United States to Paraguay,

Have reached the following understandings:

1. Purpose and Scope

The purpose of this Additional Memorandum of Understanding (“MOU”) is to memorialize the non-binding understanding between the Signatories to facilitate the transfer of third-country nationals from the United States to Paraguay.

2. Case-by-Case Consideration and Documentation

- 2.1. The U.S. Signatory may, at its complete discretion, propose to CONARE the transfer of third-country nationals, and CONARE may, at its complete discretion, consider accepting or rejecting such a proposal in whole or in part.
- 2.2. CONARE intends to provide appropriate immigration status to third-country nationals transferred to Paraguay’s territory consistent with this MOU.

3. Assurances

The Signatories intend that all actions taken pursuant to this MOU be in accordance with their countries' respective obligations under: the Convention Relating to the Status of Refugees, done at Geneva on July 28, 1951; the Protocol Relating to the Status of Refugees, done at New York on January 31, 1967; the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, adopted in New York on December 10, 1984; the principle of non-refoulement; and all other relevant international obligations, national constitutions, laws, regulations, and immigration and visa policies. Consistent with this intention, CONARE, on behalf of the Government of the Republic of Paraguay, assures the U.S. Signatory that it will treat any third-country nationals transferred from the United States to Paraguay in a manner that is in accordance with the Government of the Republic of Paraguay's international legal obligations and that any third-country national transferred to Paraguay will not be subjected to persecution on account of race, religion, nationality, membership in a particular social group or political opinion, or to torture in Paraguay, or further transferred to any country in which they would be subjected to persecution on account of race, religion, nationality, membership in a particular social group or political opinion, or to torture.

4. General Provisions

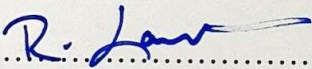
- 4.1. The Signatories intend to develop, to the extent necessary, operating procedures for the purpose of implementing this MOU in accordance with their respective national laws and international obligations. Any questions about the interpretation or implementation of this MOU are intended to be resolved through diplomatic consultations between the Signatories.
- 4.2. The Signatories may discontinue their participation in this MOU at any time but are expected to provide sixty days' advance written notice through diplomatic channels.
- 4.3. The U.S. Signatory intends to review the availability of foreign assistance funds to provide food, housing, and other related matters, in accordance with applicable laws and regulations.

4.4. Nothing in this MOU is intended to create any rights or obligations under international or domestic law, including with respect to the disbursement of funds. All acts or actions taken consistent with this MOU are subject to the availability of funds and to the applicable laws and regulations of both Signatories.

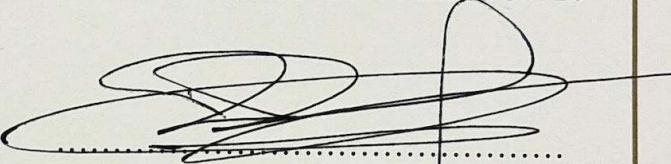
4.5. This MOU becomes operative upon signature by the Signatories.

Signed, in duplicate, in the English and Spanish languages, both being equally valid.

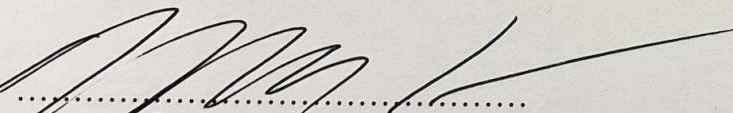
**FOR THE DEPARTMENT OF
HOMELAND SECURITY OF
THE UNITED STATES OF
AMERICA:**


.....
Date: 2-19-2026
Place: Washington, DC

**FOR THE NATIONAL
COMMISSION FOR THE
STATELESS AND REFUGEES OF
THE REPUBLIC OF PARAGUAY:**


.....
Date: 2-19-2026
Place: WASHINGTON DC.

**FOR THE DEPARTMENT OF
STATE OF THE UNITED STATES
OF AMERICA:**


.....
Date: FEBRUARY 19, 2026
Place: WASHINGTON, D.C.

Annex: Procedures for the Transfer of Third-Country Nationals from the United States to Paraguay

The Signatories intend to use the following procedures to implement this MOU:

1. Individuals Eligible for Transfer:

- Third-country nationals from Spanish-speaking countries are eligible for transfer to Paraguay under this MOU.
- Paraguay retains discretion to accept or reject any individual for proposed transfer to Paraguay.

2. Preliminary Number of Individuals to Be Transferred:

- The United States intends to recommend no more than 25 individuals per month for transfer to Paraguay.
- Paraguay may, at its discretion, decide to exceed this amount and to accept other nationalities and would inform the United States of such cases.

3. Transfer Procedures

- Seventy-two (72) hours before a proposed transfer flight, the United States, through the U.S. Embassy in Paraguay, intends to send a flight manifest to Paraguay, through CONARE, listing the persons to be transferred.
- On these flight manifests, the United States intends to provide the following information, if it is available to its authorities: name; sex; date of birth; nationality; and proof of no criminal record beyond immigration violations or other similar minor misdemeanors.
- Paraguay intends to promptly review the flight manifest and indicate its acceptance or rejection of the same, or of any individual listed thereon. No person not included on the manifest should be allowed on the transfer flight and admitted into Paraguay.
- Upon notification of its acceptance of the flight manifest, Paraguay intends to indicate its preferences with regard to the arrival airport and arrival time of the transfer flight.

- To ensure the security and safety of the transfer flight, the individuals being transferred are expected to be accompanied by appropriate personnel from the U.S. Department of Homeland Security. Paraguay intends to facilitate entry for them and for the transfer flight crew.

4. Reception Procedures

- Paraguay intends to receive any individual transferred under this MOU in accordance with its pertinent laws and immigration procedures.
- The United States and Paraguay intend to coordinate reception of any transferred individuals with the International Organization for Migration (IOM) in order to meet their immediate needs, including housing, food, and emergency medical care, and to facilitate their subsequent journey from Paraguay to their final destinations.
- IOM assistance for individuals transferred under this MOU is expected to be provided free of cost to Paraguay. To this end, Paraguay intends to coordinate and facilitate the entry and activities of IOM personnel.